

Court No. - 21

Case :- WRIT - C No. - 34657 of 2014

Petitioner :- Nawal Singh @ Lovil

Respondent :- The State Of U.P. And Another

Counsel for Petitioner :- Nirbhay Kumar

Counsel for Respondent :- C.S.C., Shri Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner and the learned counsel for the respondent Electricity Department, Sri Kamal Kesarwani holding brief of Sri Baleshwar Chaturvedi.

The petitioner is aggrieved by realization of certain electricity dues. However in paragraph 9 of the writ petition, the petitioner has made an offer for deposit of the dues in easy installments.

Sri Kesarwani has pointed out that such a provision can be invoked as is available under 2005 Electricity Supply Code, namely, Clause 6.14 which empowers the Executive Engineer to extend benefits of installments.

In view of this position that emerges, we direct that the petitioner will file a certified copy of this order before the concerned Executive Engineer and he shall proceed to act accordingly extending any such benefit to which the petitioner is entitled in terms of the aforesaid provision by passing an order within six weeks from the date of production of a certified copy of this order before him.

In the event the petitioner complies with the order passed by the Executive Engineer, the Executive Engineer shall also ensure that the connection of the petitioner is restored which is a tubewell connection and is for farming purposes looking to the extensive drought situation prevailing in the State, forthwith.

The writ petition is disposed of.

Order Date :- 9.7.2014

Sahu